

[REPUBLIC ACT NO. 9036, March 12, 2001]

**AN ACT STRENGTHENING THE GOVERNANCE AND DEFINING THE
SCOPE OF THE PHILIPPINE SCIENCE HIGH SCHOOL (PSHS) SYSTEM,
AMENDING FOR THE PURPOSE REPUBLIC ACT NO. 8496**

[Status note: This Act amended Republic Act No. 8496. RA 8496, as amended by this Act, was repealed by Republic Act No. 12310 (Expanded Philippine Science High School System Act, 2025), Section 24. Text in quotation marks is the new wording this Act inserted into RA 8496, using RA 8496's renumbered sections. It is included for historical reference only.]

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. A second paragraph is hereby added under Section 2 of Republic Act No. 8496, otherwise known as the Philippine Science High School (PSHS) System Act of 1997, to read as follows:

"The State shall also ensure that every region is given equal opportunity to benefit from the establishment of the PSHS System. Towards this end, only one (1) PSHS campus shall be established in each of the administrative regions of the country."

SEC. 2. Section 3, paragraph (a) of the same Act is hereby amended to read as follows:

"(a) Integrate the existing PSHS at Diliman, Nueva Vizcaya, Camarines Sur, Iloilo City, Leyte, Lanao del Norte and Davao City into one system of governance and management;"

SEC. 3. Section 5 of the same Act is hereby amended to read as follows:

"SEC. 5. Scope. - The Philippine Science High School System shall be composed of the existing PSHS campuses herein mentioned and future campuses which shall be established under this Act. The existing campuses at Diliman, Quezon City; Bayombong, Nueva Vizcaya; Goa, Camarines Sur; Jaro, Iloilo City; Palo, Leyte; Tugbok, Davao City; and Balo-i, Lanao del Norte, shall be known as the PSHS main campus, PSHS Cagayan Valley, PSHS Bicol Region, PSHS Western Visayas, PSHS Eastern Visayas, PSHS Southern Mindanao and PSHS Central Mindanao, respectively.

The Nueva Vizcaya Science High School, established under Republic Act No. 7622, as amended by Republic Act No. 8364, is hereby absorbed by the PSHS System and shall become PSHS Cagayan Valley campus.

The PSHS Bicol campus located in the Municipality of Goa, Camarines Sur, established under Republic Act No. 8304, as amended by Republic Act No. 8619, shall be considered distinct and separate from the San Rafael National High School in the Municipality of Tigaon, Camarines Sur. The San Rafael National High School shall continue to exist under the supervision of the Department of Education, Culture and Sports (DECS) pursuant to the provisions of Batas Pambansa Blg. 580, as amended, and shall maintain all personnel, assets, liabilities and records previously transferred and absorbed by the PSHS Bicol campus.

In the establishment of future campuses, the Board of Trustees shall consider San Ildefonso, Ilocos Sur and Aborlan, Palawan as the sites of PSHS Ilocos Region and Palawan

campuses."

SEC. 4. A new Section 6 is hereby inserted between Sections 5 and 6 of the same Act, to read as follows:

"SEC. 6. Restriction on the Conversion of High Schools Into a Philippine Science High School. - In addition to the guidelines/criteria that may be established by the PSHS Board of Trustees in the establishment and operation of Philippine Science High Schools, the conversion and inclusion of existing high schools into the PSHS System shall not be allowed."

SEC. 5. Section 6 of the same Act is hereby amended to read as follows:

"SEC. 7. Overall Coordinating Authority. - The PSHS System shall be under the administrative supervision of the Department of Science and Technology (DOST). The PSHS System Board of Trustees (BOT) shall be the Governing Board of all the PSHS campuses wherever situated."

SEC. 6. Section 7 of the same Act is hereby amended to read as follows:

"SEC. 8. Board of Trustees. - There shall be a Board of Trustees composed of the secretary of the DOST as ex officio Chairman, the secretary of DECS as ex officio Vice Chairman and the following members: The President of the U.P., the Executive Director of PSHS, the Director of the Science Education Institute (SEI), the President from the PSHS National Alumni Association, and the chairpersons of the congressional committees on science and technology as ex officio members; and one (1) representative each from the private sector representing higher education, education for the gifted, industry, agriculture, and new and emerging technologies. The private sector representatives shall be appointed by the Board of Trustees upon recommendation of a duly constituted search committee. As much as practicable, the private sector representatives shall come from the various geographic regions. For the first set of appointments, three (3) of them shall serve for four (4) years, while the other two (2) for two (2) years, thereafter, succeeding appointments shall have a fixed term of four (4) years.

The Board shall exercise the following powers:

1. Formulate policies and guidelines for the administration and operation of the PSHS System;
2. Establish a PSHS campus in each of the administrative regions;
3. Approve appointment, promotion, retention, renewal, rewards and incentives for faculty and staff, fix their compensation and other conditions of employment, and remove them for cause after proper investigation and hearing;
4. Approve the curricula submitted by the Executive Director;
5. Approve the criteria for the selection and admission of students;
6. Approve the grant of scholarship, stipend and such allowances for students;
7. Approve the graduation of successful candidates from the various PSHS campuses;
8. Formulate policies and rules of discipline for students, faculty and staff;
9. Approve the PSHS System budget, receive and appropriate to the ends specified by law such sums as may be provided by law for the support of the System;

10. Receive grants whether cash, land, buildings and improvements thereof; donations, contributions, bequests, gifts, and to formulate policies for the administration thereof;
11. Approve the use of all income generated by the school in the pursuit of its functions and donations received in trust by individual campuses, according to the purpose of the donor and intention of the donation. In cases where income/donation received is not intended for a particular campus, the Board shall likewise appropriate the same for the benefit of the System or any part thereof;
12. Develop policies for the expansion of enrollment in the campuses under the PSHS System;
13. Establish policies and formulate guidelines/criteria, requirements necessary to rationalize the establishment and operation of science high schools under the System in order to maintain the quality and uniform standard inherent of a bona fide PSHS; and
14. Prepare strategic plans to enhance the capability of the System in developing human resources with focus on youth with special talents in science and mathematics."

SEC. 7. Section 8 of the same Act is hereby amended to read as follows:

"SEC. 9. Executive Director (ED). - There shall be an Executive Director who shall be appointed by the Board and shall have the rank of a bureau director, with a fixed term of six (6) years, renewable for another term. The ED shall exercise administrative supervision over all campus directors and shall be the primary implementor of policies and guidelines set by the Board of Trustees. As a member of the Board of Trustees, the ED shall articulate to the Board the mutual concern of all the campuses."

SEC. 8. A new Section 10 is hereby inserted between Sections 8 and 9 of the same Act, to read as follows:

"SEC. 10. Deputy Executive Director (DED). - There shall be a Deputy Executive Director (DED) who shall be appointed by the Board for a term of six (6) years, renewable for another term. The DED shall perform the duties and functions assigned by the Executive Director."

SEC. 9. Section 9 of the same Act is hereby renumbered as Section 11.

SEC. 10. Section 10 of the same Act shall be amended, to read as follows:

"SEC. 12. Executive Committee. - There shall be an Executive Committee in the PSHS System composed of the Executive Director as ex officio chairperson and the Campus Directors as members."

SEC. 11. Sections 11,12,13,14 and 15 of the same Act are hereby renumbered accordingly.

SEC. 12. Separability Clause. - If, for any reason, any provision of this Act is declared unconstitutional or invalid, the other parts or provisions hereof which are not affected shall continue to be in full force and effect.

SEC. 13. Repealing and Amending Clause. - All laws, executive orders, presidential decrees, rules and regulations or parts thereof which are inconsistent with any provision of this Act are hereby repealed or amended accordingly.

SEC. 14. Effectivity. - This Act shall take effect immediately upon its approval.

Approved,

(Sgd.) AQUILINO Q. PIMENTEL JR.

President of the Senate

(Sgd.) ARNULFO P. FUENTEBELLA

Speaker of the House of Representatives

This Act which originated in the House of Representatives was finally passed by the House of Representatives and the Senate on April 27, 1999 and November 15, 2000, respectively.

(Sgd.) LUTGARDO B. BARBO

Secretary of the Senate

(Sgd.) ROBERTO P. NAZARENO

Secretary General

House of Representatives

Approved: March 12, 2001.

(Sgd.) GLORIA MACAPAGAL-ARROYO

President of the Philippines